



OSA(CAD)Nos.135 to 140
of 2021

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IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED : 15.12.2021

CORAM :

THE HON'BLE MR.S.NAVIN
ACTING CHIEF JUSTICE

Original Side Appeal (CAD) Nos.135 to 140 of 2021
and CMP.Nos.20488, 20496, 20498 & 20500 to 20502 of 2021

Cipla Limited

.. Appellant in
all the appeals

Vs

Sun Pharmaceutical Industries
Ltd., Chennai-35

.. Respondent in
all the appeals

Prayer : APPEALS under Order XXXVI Rule 1 of the Original Side Rules read with Clause 15 of the Madras High Court Letters Patent and Section 13(1-A) of the Commercial Courts Act, 2015 against the common order dated 07.10.2021 in A.Nos.3501 to 3503 of 2021 and OA.Nos.281 to 283 of 2021 in C.S.(Comm.Div.) No.176 of 2021.



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OSA(CAD)Nos.135 to 140
of 2021

For Appellant : Mr.P.S.Raman, Senior
Counsel appearing for
Mr.K.Premchandar
For Respondent Mr.Satish Parasaran, Senior
Counsel appearing for
Mr.Rajesh Ramanathan

COMMON JUDGMENT

(Judgment was delivered by the Hon'ble Acting Chief Justice)

We have heard the respective learned Senior Counsel
appearing for both parties.

2. The challenge made is to the common order dated
07.10.2021 passed by the learned Single Judge whereby, in
paragraph 7, with regard to use of the words 'RESPULES, BUDEFEX
and DUOZ', it was held that the claim of the plaintiff - appellant
herein to use the same exclusively was an issue, which could be
decided only after trial and that there should be no restraint order.
It was also held in paragraph 8 that all the other interim orders



OSA(CAD)Nos.135 to 140
of 2021

WEB COPY

passed restraining the defendant - respondent herein stood modified.

3. The case has a chequered history with reference to the suit filed by the appellant herein - plaintiff. An ad-interim injunction was granted by the learned Single Judge, which was challenged by the defendant - non appellant, by filing OSA(CAD) Nos.8 to 13 of 2021. By a common judgment dated 06.7.2021, the First Bench of this Court passed an order with reference to the arguments made by the parties. After the said common judgment, the matter was to be reconsidered not only with respect to continuance or vacation of the ad-interim order, but also on larger injunction.

4. It is not in dispute by either parties that the issue with respect to larger injunction was not considered by the learned Single Judge specifically in reference to use of small letters and also the word 'RESPULES'. Both the parties agree for remanding the matters for a fresh consideration in the light of the said common judgment



OSA(CAD)Nos.135 to 140
of 2021

WEB COPY

of the First Bench and more particularly with reference to use of the word 'RESPULES' and small letters.

5. In the light of the above, the impugned common order dated 07.10.2021 is set aside and the matters are remanded to the learned Single Judge for fresh consideration. The parties before this Court shall refer to the said common judgment of the First Bench for necessary consideration not only with respect to continuance or vacation of the ad-interim order, but also to consider the matter for grant of larger injunction or its refusal.

6. There is one more issue regarding colour scheme. The appellant herein has accepted change to colour scheme. This is recorded. To that extent, the issue stands concluded and it is made clear that it shall not be agitated by either parties before the learned Single Judge.



OSA(CAD)Nos.135 to 140
of 2021

WEB COPY

7. With the above observations, the original side appeals are disposed of. Consequently, the connected CMPs are closed. There will be no order as to costs.

(M.N.B., ACJ.) (P.D.A., J.)
15.12.2021

Index : Yes/No

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OSA(CAD)Nos.135 to 140
of 2021

S.NAVIN, ACJ

RS

OSA.(CAD) Nos.135 to 140 of 2021
& CMP.Nos.20488, 20496, 20498
& 20500 to 20502 of 2021

15.12.2021